

EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

SECOND SECTION

DECISION

Application no. 63639/09
Süleyman KESKİN and Others
against Turkey

The European Court of Human Rights (Second Section), sitting on 10 March 2015 as a Committee composed of:

Paul Lemmens, *President,*
Robert Spano,
Jon Fridrik Kjølbro, *judges*
and Abel Campos, *Deputy Section Registrar,*

Having regard to the above application lodged on 18 November 2009,

Having deliberated, decides as follows:

FACTS AND PROCEDURE

1. The applicants, whose names appear in the appendix, are Turkish nationals, who were represented before the Court by Mr K.E. Güzel, a lawyer practising in Istanbul. The Turkish Government ("the Government") were represented by their Agent.

2. The applicants complained under Article 3 of the Convention that they had been subjected to ill treatment by the police. The applicants further invoked the violation of Articles 10 and 11 of the Convention regarding the forceful police intervention that they had been subjected to while they were distributing leaflets at a tube station to draw attention to the draft legislation on the Social Security System.

3. The applicants' complaints were communicated to the Government, who submitted their observations on the admissibility and merits. The observations were forwarded to the applicants' representative, who was invited to submit their own observations. No reply was received to the Registry's letter.

4. By letters dated 20 October 2014 and 10 December 2014, sent by registered post, the applicants' representative and the applicants were

notified respectively that the period allowed for submission of their observations had expired on 19 August 2014 and that no extension of time had been requested. The applicants' representative's and the applicants' attention was drawn to Article 37 § 1 (a) of the Convention, which provides that the Court may strike a case out of its list of cases where the circumstances lead to the conclusion that the applicant does not intend to pursue the application. The first letter dated 20 October 2014 could not be delivered to applicants' representative due to a change of address that had not been notified to the Court. As to the second letter, according to the information obtained from the official website of the Turkish Postal Service, on 17 December 2014 a notice was left to the applicants. However, they failed to collect the letter and no response has been received.

THE LAW

5. The Court considers that, in these circumstances, the applicants may be regarded as no longer wishing to pursue their application, within the meaning of Article 37 § 1 (a) of the Convention. Furthermore, in accordance with Article 37 § 1 *in fine*, the Court finds no special circumstances regarding respect for human rights as defined in the Convention and its Protocols which require the continued examination of the case.

In view of the above, it is appropriate to strike the case out of the list.

For these reasons, the Court, unanimously,

Decides to strike the application out of its list of cases.

Done in English and notified in writing on 31 March 2015.

Abel Campos
Deputy Registrar

Paul Lemmens
President

APPENDIX

1. Süleyman Keskin, who was born in 1979, lives in Istanbul.
2. Cemre Ay, who was born in 1992, lives in Istanbul.
3. Kader Cihan, who was born in 1981, lives in Istanbul.
4. Mutlu Cihan, who was born in 1982, lives in Istanbul.
5. Demet Yılan, who was born in 1991, lives in Istanbul.
6. Kıvanç Yıldırım, who was born in 1981, lives in Istanbul.